4th Floor
Riverwalk Office Park
Block A, 41 Matroosberg Road
Ashlea Gardens
PRETORIA SOUTH AFRICA 0081

P.O. Box 580, **MENLYN,** 0063
Tel: 012 346 1738, **Fax:** 086 693 7472
E-Mail: tenders@pfa.org.za
Website: www.pfa.org.za

BID DESCRIPTION	**PROVISION OF CLOUD-BASED BACK-UP AND DISASTER RECOVERY (DR) SERVICES FOR A PERIOD OF 36 MONTHS**
BID NUMBER	**OPFA/ICT/042024**
CLOSING DATE	**31 JANUARY 2025**
CLOSING TIME	**11:00**

Bidder name: ______________________________

Company registration number: ______________________________

CSD number: ______________________________

4th Floor
Riverwalk Office Park
Block A, 41 Matroosberg Road
Ashlea Gardens, Extension 6
PRETORIA
SOUTH AFRICA
0181

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1. INTRODUCTION

1.1. The Office of the Pension Funds Adjudicator (OPFA) was established in terms of section 30B of the Pension Funds Act No.24 of 1956 ("Act") with effect from 01 January 1998 and is funded in terms of section 30R of the Act.

1.2. In terms of section 30D of the Act, the main objective of the Adjudicator is to dispose of complaints lodged in terms of section 30A (3) of the Act, and complaints for which the Adjudicator is designated in terms of section 211 of the Financial Sector Regulation Act.

1.3. In supporting the mission of the OPFA, Information and Communication Technology (ICT) has been identified as one of the key drivers in modernising and continuously improving the functioning of the organisation. This modernisation is aimed at improving service delivery to the stakeholders of the office and optimising internal operations. To this end, various investments have been made in the underlying technology to support the mission of the organisation whilst optimising ICT security.

1.4. The OPFA implements a multi-pronged ICT security approach to protect its assets including IT systems, the data it collects and uses and most importantly its ability to provide the services to its stakeholders. This, ICT security, is given effect by utilising internal staff and service providers to implement various processes and technologies.

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2. BUSINESS CONTINUITY AND DISASTER RECOVERY SERVICES OBJECTIVES

2.1. The OPFA acknowledges its responsibility towards Business Continuity through its Business Continuity Management Policy. The policy establishes the basic principles and framework necessary to ensure emergency response, recovery, restoration and resumption of the OPFA operations and business activities in the event of unforeseen business interruption.

2.2. The Business Continuity Management program is designed to ensure that the long-term viability of the OPFA is maintained in the event of an interruption to essential business operations and will provide for the recovery of the critical business processes and supporting information technology systems within a specified timeframe and in terms of the provisions of the policy.

3. BACKGROUND OF THE REQUIRED SERVICES

3.1. The purpose of this bid is to solicit proposals from suitable bidders in order to appoint a a qualified service provider to deliver a comprehensive Hosted Disaster Recovery (DR) and Backup Solution as part of the business continuity management and disaster recovery strategy for a period of 36 months effective from 1 April 2025.

3.2. This initiative aims to enhance OPFA's business continuity and ensure the availability of critical services in the event of a disaster impacting its on-premises data centre. The ideal service provider should have a proven track record in providing hosted and backup solutions for at least five years. The selected provider will be responsible for offsite backups, disaster recovery planning, and efficient data restoration processes.

3.3. To achieve this objective, the OPFA is inviting reputable service providers to submit proposals demonstrating their suitability for this critical role. The successful provider will be responsible for delivering an end-to-end backup and disaster recovery solution within South Africa.

4. CURRENT INFRASTRUCTURE

4.1. The successful bidder will be expected to accommodate OPFA's existing server infrastructure requirements for disaster recovery replication and data backup.

4.2. Server infrastructure

4.2.1. The OPFA currently runs Microsoft Hyper-V environment hosting the following servers from three (3) Hosts. The table below indicates the current infrastructure details.

Applications (e.g. SQL)	Operating System	No of CPUs	RAM (GB)	Storage total (GB)	Free Space (GB)	Total Used (GB)
Certificate Authority	Windows Server 2019	2 Virtual processor	8GB	100GB	40GB	60GB
Data Domain	Windows Server 2019	6 Virtual processor	16GB	120GB	40GB	80GB
Data Domain	Windows Server 2019	6 Virtual processor	16GB	120GB	40GB	80GB
Doc-IT	Windows Server 2019	4 Virtual processor	8GB	200GB	53GB	147GB
Pastel Evolution	Windows Server 2019	4 Virtual processor	16GB	200GB	130GB	70GB
Exclaim	Windows Server 2019	4 Virtual processor	12GB	400GB	315GB	85GB
File Server	Windows Server 2019	4 Virtual processor	16GB	4.71TB	1.83TB	2.88TB
Inmagic application-Library	Windows Server 2019	2 Virtual processor	8GB	400GB	350GB	50GB
MECM	Windows Server 2019	8 Virtual processor	32GB	1.2TB	610GB	610GB
Networker Application	Windows Server 2019	8 Virtual processor	16GB	120GB	14GB	106GB
Networker Server	Windows Server 2019	4 Virtual processor	32GB	300GB	97GB	203GB
RDS Server	Windows Server 2019	4 Virtual processor	16GB	200GB	123GB	77GB
Respond Application	Windows Server 2019	4 Virtual processor	16GB	400GB	310GB	90GB
Pastel Partner	Windows Server 2019	4 Virtual processor	16GB	600GB	458GB	142GB
Sage300	Windows Server 2019	8 Virtual processor	16GB	100GB	12GB	78GB
Cherwell	Windows Server 2019	4 Virtual processor	16GB	100GB	10GB	90GB
SQL	Windows Server 2019	4 Virtual processor - 3.00GHz	24GB	6TB	3TB	3.1TB
SQL	Windows Server 2019	4 Virtual processor - 3.00GHz	24GB	6TB	3TB	3.1TB
Domain Controller	Windows Server 2019	2 Virtual processor	8GB	446GB	366GB	80GB
Domain Controller	Windows Server 2019	2 Virtual processor	8GB	100GB	49GB	51GB
Data Domain	Windows Server 2019	4 Virtual processor	8GB	150GB	88GB	62GB
Exchange Server	Windows Server 2019	8 Virtual processor	32GB	2.65TB	1.57TB	1.08TB
Exchange Server	Windows Server 2019	8 Virtual processor	32GB	5.55TB	4.4TB	1.11TB
Hyper-V Replica	Windows Server 2019	4 Virtual processor	16GB	557GB	462GB	95GB

Applications (e.g. SQL)	Operating System	No of CPUs	RAM (GB)	Storage total (GB)	Free Space (GB)	Total Used (GB)
SharePoint	Windows Server 2019	4 Virtual processor	16GB	100GB	10GB	90GB
SharePoint	Windows Server 2019	4 Virtual processor	16GB	126GB	65GB	61GB
SharePoint	Windows Server 2019	4 Virtual processor	16GB	100GB	47GB	53GB
SharePoint	Windows Server 2019	4 Virtual processor	16GB	100GB	32GB	68GB

4.3. Business Applications

Application	System purpose
Respond	Case Management
Sage 300 (Itirele)	HR & Payroll
Cherwell	IT Service Management
Exclaim Integrated	Risk & Compliance Management
Doc IT	Document Management
InMagic	Library Management
Pastel Partner	Financial Accounting
Pastel Evolution	Asset Management
Caseware	Finance (Annual Financial Statements)
SharePoint	Website and Intranet

4.4. Current back-up posture-Clement to include

4.4.1. The OPFA currently utilises a data backup system powered by the DELL solution, which is hosted on-premises.

4.4.2. The solution is built on the 3-2-1 principle where three (3) backup copies are kept. Two (2) different types of storage devices are used i.e. Disk storage (DELL) and Tape storage (DELL). One (1) copy is stored offsite.

4.4.3. The OPFA utilises the following backup policy and schedule.

Backup Schedule	
Incremental	Sunday to Friday.
Weekly	Full backup, Saturday.
Monthtly	Full backup, last Friday of the month.
Yearly	Full backup, last Friday of the year.

4.4.4. Below is the current amount of backed-up data in the environment.

Storage	Data (TB)
DELL Disk storage	**18582,6 GB (18.15TB)**

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4.5. **Connectivity**

Lines	Size
Primary Data Line (internet link)	300MB
Failover (internet link)	200 MB
Disaster Recovery Point to Point Data Line	256MB

4.6. **Telephone Management System**

4.6.1. The OPFA currently utilises a VoIP telephone system powered by the OpenScape Business solution, which is hosted on-premises. Some calls are recorded using this system.

4.6.2. The office plans to transition from the current solution to the 3CX telephone system. Bidders must consider this transition in their proposals.

4.6.3. The OPFA intends to integrate Microsoft Teams with the new telephone system in the near future.

4.6.4. The OPFA maintains two telephone line carriers, with one serving as the primary link and the other as the secondary link. All OPFA telephone numbers are hosted on the respective service providers' platforms.

4.6.5. The primary number is 012 748 4000, used for the switchboard. The associated number range is 4000 - 4199. The secondary numbers, used in case of a failure with the primary number, are: (012 346 1738, 012 346 1773, 012 346 3937, 012 346 7507, 012 346 1462, 012 346 1548)

4.7. **ICT Security**

Items	Details
Firewall	• 2x 6200 Checkpoint Production Firewalls* • 1x 3600 Checkpoint Guest Wi-Fi Firewall
Anti-Virus	Symantec Endpoint Protection
Virtual Private Network (VPN)	Checkpoint

The OPFA will be changing from Checkpoint firewall to Fortigate firewall in the short term-period.

4.8. **Number of office and users**

4.8.1. The OPFA has only one office at the Riverwalk Office Park in Ashlea Gardens, Pretoria, which serves as the primary site for business and ICT operations.

4.8.2. Total number of users per Active Directory: 81. This number may change due to the growth of the organisation.

5. SCOPE OF WORK AND SERVICES

5.1. The primary objectives for the Cloud-Based Backup and Disaster Recovery (DR) Service are as follows:

5.1.1. Analyse and understand OPFA's current on-premises and cloud environments.

5.1.2. Backup & Restore Solution: Implement a simple and efficient solution covering all data types.

5.1.3. Establish Disaster Recovery As a Service (DRaaS): Configure and deploy a Disaster Recovery as a Service (DRaaS) environment with appropriate toolsets.

5.1.4. Ensure DR capabilities that provide data restoration up to 24 hours before a disaster event (Recovery Point Objective - RPO) with a 6-hour restoration time (Restore Time Objective - RTO).

5.1.5. Location Compliance: Host data centres locally in South Africa.

5.1.6. Uptime Guarantee: Ensure 99.9% service uptime.

5.1.7. Remote Access: Provide efficient and secure remote access to the recovery data centre.

5.1.8. Synchronisation Flexibility: Allow data synchronization to the DR site at intervals of 15 minutes.

5.1.9. Bandwidth Provisioning: Offer high bandwidth for optimal remote access.

5.1.10. DR Tests: Conduct two DR tests per year (maximum 2 days per test) during the contract period to validate failover processes

5.1.11. Manage and maintain all recovery site hardware including firewalls and other security apparatus.

5.2. ICT Back-up, restore, replication and storage

5.2.1. Backup of business systems on daily, weekly, monthly, and custom or ad-hoc backups.

5.2.2. Perform monitoring of backup jobs and provide reports indicating the success or failure of each job.

5.2.3. Perform troubleshooting of backup/replication job failures and ensure successful completion.

5.2.4. Back-ups must be scanned for potential harmful viruses and malware

5.2.5. Conduct quarterly back-up test restores to validate backups.

5.2.6. Restoration of backups as and when required.

5.2.7. Migration from traditional back-ups to new solution.

5.3. Provision of Disaster Recovery as a Service (DRaaS)

5.3.1. Provision of a remote location datacentre to serve as a Recovery Site datacentre for the OPFA in the event of a disaster - ICT Disaster Recovery as a Service (DRaaS).

5.3.2. Provision replication of data from the OPFA primary datacentre to DRaaS datacentre in intervals that will yield a 24-hour Recovery Point Objective (RPO) and 6-hour Recovery Time Objective (RTO).

5.3.3. Migration of the current DR including data from the existing service provider if necessary.

5.3.4. The DR solution should be able to service at least 100 office users connecting remotely via VPN and operating as if the environment were a production environment.

5.3.5. High Availability Support: Provide a DR site for all business-critical systems, capable of serving as a production site if needed.

5.3.6. Redundant Connectivity: Ensure DR site network connectivity is resilient, redundant, and capable of handling OPFA’s demands.

5.3.7. Data Integrity and Security: Secure data archiving, and outline processes for managing physical and logical access to the DR site.

5.3.8. Monitoring Access: Enable OPFA to remotely monitor environments and conduct facility inspections and audits as needed.

5.3.9. The appointed service provider will be required to provide DR Test Certificates after each test, detailing the process; issues and improvements noted.

5.4. Connectivity

5.4.1. The service provider should take into consideration the existing connectivity lines for backup to the DR Site.

5.4.2. Provide a minimum of 100Mbps Internet Breakout in Disaster Recovery mode.

5.5. DR site requirements

5.5.1. **Location:** The recovery site should be within a **60 km** radius of OPFA's offices (**the Work Area Recovery (WAR) site may differ from the disaster recovery site**) but minimum of 15 km away from the OPFA offices.

5.5.2. The physical facility should comply with Occupational Health and Safety (OHS) and environmental regulations and applicable by-laws.

5.5.3. **Data Centre Facilities:** Provide essential infrastructure, including air conditioning, fire suppression systems, smoke detectors, and security measures.

5.5.4. **Security Measures:** Implement strict access controls, surveillance, secured cabinets, and network monitoring.

5.5.5. **Number of Seats:** Accommodate 10 seats with fully equipped workstations with working computers.

5.5.6. **Boardroom Facilities:** Provide a boardroom with hybrid meeting capabilities.

5.5.7. **Printing Facilities:** Supply a multifunction printer (MFP) capable of black-and-white and color printing, copying, scanning, and faxing. The MFP mus be cable to print up to 40 pages per minute (ppm) for both colour and monochrome printing on A4 paper.

5.5.8. **Parking Space:** Ensure the availability of safe and secure parking spaces.

5.5.9. **Provide a secure steel Battle Box:** The battle box must be constructed from heavy-duty steel to ensure durability and protection against tampering. It should have a high-security locking mechanism, compatible with padlocks or digital keypads. The recommended dimensions are 900 mm (height) x 600 mm (width) x 600 mm (depth), accommodating up to 50 A4 binders or equivalent document volume. Additionally, it should include recessed handles or caster wheels for easy mobility.

5.6. **Review and develop governance documents**

5.6.1. Review the backup policy to align with the new approach to backups.
5.6.2. Review the ICT Disaster Recovery Plan.
5.6.3. Develop a Disaster Recovery Standard Operating Procedures (SOP)
5.6.4. Review Business Continuity Plans (BCP)

5.7. **Training**

5.7.1. Provide training to key Business Stakeholders such as Business Continuity Managers, Coordinators and ICT personnel.

5.8. **Service level agreement (SLA)**

5.8.1. The service provider will report to the OPFA Senior ICT Manager or delegated personnel.
5.8.2. The service provider will be expected to conclude an SLA with the OPFA and report regularly as proposed by the Senior ICT Manager or delegated personnel with regards to the performance of the SLA.
5.8.3. The service provider will be expected to engage regularly with the OPFA team, as per the schedule and deliverables that will be agreed between the parties.
5.8.4. The service provider will be expected to avail the environment for periodic audits to validate the services being offered.

5.8.5. The table below stipulates the service levels, targets and penalties that will apply.

Description	Mean Time to Respond	Mean Time to Repair	Target	Penalties
Incidents –Break-fix (Support and Maintenance related incidents)	1 hour	8 hours	95%	3% of the monthly Invoice.
Incidents – Break-fix (threats, security breaches)	1 hour	4 hours	95%	3% of the monthly Invoice.
Service requests (excluding reports)	1 hour	24 hours	95%	3% of the monthly Invoice.
Problem Management (threats, breaches and support and maintenance)	n/a	40 hours	90%	3% of the monthly Invoice.

Description	Mean Time to Respond	Mean Time to Repair	Target	Penalties
Problem Management (Root Cause Analysis Report)	n/a	40 hours	100%	3% of the monthly Invoice.
Reports	As per agreed Reporting dates)		100%	5% of the monthly Invoice.

- No penalties will be imposed on the bidder in instances where the agreed SLAs are not met due to reasons that fall outside the bidder's scope.
- A maximum of 10% penalty will be levied per month if the cumulative total of SLA breaches per month is more than 10%.
- Imposing the penalty does not absolve the bidder from performing the task(s), if repetitive non-compliance continues, the repetitive penalty will be imposed until the task(s) are completed.
- If the bidder fails to deliver the goods or services in line with the agreed SLAs, the OPFA reserves the right to deduct any penalty amount, from the next invoice, irrespective of the service to which the penalty applies. The bidder will not accrue service credits for finalising tasks ahead of time; therefore, the bidder will not be able to offset the penalties with the service credits.
- Invoices will only be considered for approval once the monthly report has been submitted and accepted by the OPFA. This will take into consideration offsetting the penalties accumulated.

5.9. Continuous improvement

5.9.1. The bidder must make a provision of 15% of the total value of the contract for out-of-scope change request or ad-hoc services. This provision will only be used as and when ICT landscape needs to change (e.g relocation). The bidder is not entitled to this amount and will only bill for this amount when the Statement of Work has been signed by the bidder and the OPFA. The request will be initiated by the OPFA representatives.

6. PRICING SCHEDULE (FIRM PRICING AND OFFER)

PART A – ONCE OFF COST		
	REFERENCE TO SCOPE	AMOUNT EXCL VAT
Implementation of Cloud Backup Solution	0	
Implementation of DR Solution	5.3	
Back Licenses for 36 Months (if applicable)		
Review of Backup Policy	5.6.1	
Review of ICT DR Plan	5.6.2	
Development of DR SOP	5.6.3	
Review Business Continuity Plans (BCP)	5.6.4	
Training	5.7	
Miscellaneous / other costs (specify)		
TOTAL EXCL VAT		
TOTAL INCL VAT		

PART B – SUPPORT & MAINTENANCE			
	YEAR 1	YEAR 2	YEAR 3
Cloud Backup Solution Maintenance.			
DR Solution Maintenance.			
Two DR Test per Year			
TOTAL EXCL VAT			
TOTAL INCL VAT			
PART C			
Continuous improvement (15% of A & B above)			

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TOTAL PROJECT COST	**COST (R)**
PART:A INCL VAT	
PART:B INCL VAT	
PACT:C INCL VAT	
TOTAL	
BID PRICE IN WORDS	

7. EVALUATION OF BID PROPOSAL

7.1. The proposals will be evaluated in four stages outlined below:

- Stage 1 – Administrative compliance.
- Stage 2 – Mandatory requirements.
- Stage 3 – Functionality requirements.
- Stage 4 – Pricing and preference points.

7.2. Stage 1: Compliance with administrative requirementcts

Compliance requirement	**Attendance of compulsory tender briefing**	**Comply**	**Do not comply**

Document that must be submitted	**Non-submission may result in disqualification?**	
Master Bid Document	**Yes**	Provided and bound
Electronic copy (USB /compact disc)	**Yes**	Same as the master bid document
Invitation to Bid – SBD 1	**Yes**	Duly completed and signed
CSD Registration	**Yes**	CSD registration number/Proof of CSD registration. If you are not registered proceed to complete the registration of your company prior to submitting your proposal. Visit https://secure.csd.gov.za/ to obtain your vendor number.
Pricing schedule	**Yes**	Duly completed.
SBD 4- Bidders Disclosure	**Yes**	Duly completed and signed.
SBD 6.1 Preference points claim form in terms of Preferential Procurement Regulation 2022	**No**	Duly completed and signed. Non-submission will lead to a zero (0) score for preference points
Adherence to closing date and time	**Yes**	Submission by the due date and time.
Confirmation of the Bidder's contribution to Pension/Provident fund	**No**	Proof of contribution or sworn affidavit must be provided

7.3. **Stage 2: Mandatory Requirements**

7.3.1 The OPFA reserves the right to verify any information in the response with the bidder or any other sources (e.g. OEM, CSD, previous clients etc.). Bids that do not comply with any mandatory requirement, shall be regarded as non-compliant and will be disqualified from further evaluation.

Requirement	Comply Yes or No	Reference to document and section on proposal
Bidder must submit a document to indicate compliance with requirements for item 1-6		
1. Proof of ownership or a lease agreement for the Disaster Recovery Centre/Site. **Evidence required:** proof of address		
2. The WAR site should be within 60KM and a minimum of 15 km radius away from the OPFA offices. **Evidence required:** proof of address		
3. Back-up solution: The Bidder must be authorised by the Original Equipment Manufacturer (OEM) to deal, distribute or resell the products or license within the boundaries of South Africa. The letter or certificate must be on the letterhead of the OEM and signed by an authorised official. **Evidence required:** OEM letter of proposed solution		
4. The bidder confirms that the resources that will be assigned to work on the OPFA Backup and DR Solution possess the right qualification and skills. **Evidence required:** CVs and qualifications of key personnel		
5. Data hosted in stored locally (South African) Data Centre **Evidence required:** confirmation of the requirement		
6. Provide a detailed network architecture diagram that illustrates a secure, isolated network environment for the solution **Evidence required:** Architecture diagram		

7.4. Stage 3: Functionality Evaluation

7.4.1. Bidders must obtain a minimum of **80** points in order to be evaluated in the next evaluation stage. Bidders who score less than **80 out of 100** points with respect to functionality evaluation compliance will be regarded as non-responsive and will not be evaluated further.

7.4.2. The functionality criteria and technical requirements below will be evaluated and scored. Bidders are expected to substantiate each aspect of their response. Bidders must clearly reference their bid response in specific terms. The OPFA will **NOT** provide a score for a specific item should the bidder (i) not substantiate their response and (ii) inaccurately reference their substantiation in their bid response. At an absolute minimum, the following must be provided for each item **[reference to schedule(s), section(s), page number(s)].**

As part of the functionality/ technical evaluation the bidder must demonstrate on their methodology compliance with the listed requirements how they are complied with (item 1- 25)		
	Comply Yes / No	**Reference to document and section on proposal**
1. Bidder aligns with best practices and global standards for business continuity management i.e. ISO22301		
2. Data Centre Facilities with proper environmental controls and aligns to ISO22237		
3. Bidder aligns with best practices and global standards for information security and risk management i.e. ISO/IEC 27001 and ISO 31000		
4. Backed-up data must be saved in encrypted form to avoid ransomware infection		
5. Data must be protected by encryption in transit and at rest against malware and ransomware.		
6. Offsite Backup Server (replicated from onsite server).		
7. Solution must meet RTO of 06 hours in event of a disaster.		
8. Facilities for the DR site, Infrastructure, Connectivity and Internet breakout services.		
9. Guaranteed 99.9% service uptime.		

As part of the functionality/ technical evaluation the bidder must demonstrate on their methodology compliance with the listed requirements how they are complied with (item 1- 25)		
10. Secure remote Access for access to the recovery data centre.		
11. Synchronisation flexibility for data synchronisation (minimum 15 minutes interval)		
12. Adequate bandwidth for optimal remote access.		
13. Two DR test per year.		
14. Security Measures for access controls, surveillance, secured cabinets, and network monitoring.		
15. 10 seats equipped with workstations.		
16. Boardroom with hybrid meeting capabilities		
17. Secure parking space.		
18. Minimum 100Mbps Internet Breakout.		
19. MFP Printing Facilities.		
20. High Availability Support.		
21. DR to service 100 office users connecting remotely.		
22. Backup of business systems on daily, weekly, monthly, and custom or ad-hoc backups.		
23. Backup Reports.		
24. Maintenance & Support (SLA)		
25. The access, protection, processing and dissemination of information, including personal and confidential information, must be done in a manner consistent with and in accordance with the Protection of Personal Information Act.		

7.4.3. **Functionality evalution Criteria**

#	Evaluation criteria	Description	Weight	Score matrix	
1.	Back-up Methodology.	The bidder must provide a clear and detailed approach to implementing the solution as outlined in scope section 0	**20**	5	The proposal exceeds/ meet all requirements
				4	The proposal adequately meets all requirements
				3	The proposal moderately meets all requirements
				2	The proposal does not meet all requirements
				1	No relevant information provided
2.	Disaster Recovery Methodology.	The bidder must provide a clear and detailed approach to implementing the solution as outlined in scope section 5.3	**20**	5	The proposal exceeds/ meet all requirements
				4	The proposal adequately meets all requirements
				3	The proposal moderately meets all requirements
				2	The proposal does not meet all requirements
				1	No relevant information provided

#	Evaluation criteria	Description	Weight	Score matrix	#
3.	Backup: Previous experience and track record	The bidder must provide at least three (3) contactable reference letters where Back-up and similar solutions on section 5.2 were successfully provided by the bidder in the last five years.	**15**	5	The bidder submitted three reference letters that meet all requirements
				4	The bidder submitted two reference letters that meet all requirements
				3	The bidder submitted one reference letter that meet all requirement
				2	Letters provided but do not meet all requirements
				1	No information provided
4.	DR: Previous experience and track record.	The bidder must provide at least three (3) contactable reference letters where similar solutions and related services on section 5.3 were successfully provided by the bidder in the last five years.	**15**	5	The bidder submitted three reference letters that meet all requirements
				4	The bidder submitted two reference letters that meet all requirements
				3	The bidder submitted one reference letter that meet all requirement
				2	Letters provided but do not meet all requirements
				1	No information provided
5.	Support & Maintenance Methodology	Support & Maintenance methodology as per section 5.8.	**20**	5	The proposal exceeds/ meets all requirements
				4	The proposal adequately meets all requirements
				3	The proposal moderately meets all requirements
				2	The proposal does not meets all requirements
				1	No relevant information provided
6.	Technical resources experience and certification.	The bidder must submit the organisational structure with relevant and competency of support and maintenance resources specific to this assignment. Bidders must submit detailed CV's of at	**10**	5	Bidder provided the organisational structure with relevant competency, including atleast 2 CVs with relevant certification and minimum of 5 years relevant experience
				4	Bidder provided the organisational structure with relevant competency, atleast 1 CV and relevant certification with minimum of 5 years relevant experience
				3	Bidder did not provide organisational structure and submitted 2 CVs with

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#	Evaluation criteria	Description	Weight	Score matrix	#
		least two (2) technical support team with contactable references. Each technical resource must have relevant qualification and a minimum of five (5) years of relevant experience.			relevant certification and required experience.
				2	Bidder submitted Organisational structure and provided CVs without relevant certification and experience
				1	No relevant information provided
TOTAL			**100**		

7.4.4. **Physical site inspection and verification**

7.4.4.1. As part of the evaluation process the OPFA will conduct physical site inspection to verify the information above. This will include but not limited to availability, existence and compliance of the facilities offered. Should any of the information provided be found to be inaccurate or invalid, the bidder will be disqualified from further evaluation process.

Work Recovery Area	Compliance to Health and Safety and environmental regulations
	Security and access controls measures
	Parking
	Location
Data Centre Facilities (ICT Operations)	Compliance with data centre requirements infrastructure (heating, ventilation, and air conditioning system).
	Location
	Infrastructure availability

7.5. **Evaluation stage four : price and preference point system**

7.5.1. Only Bidders that have met a minimum of 80-points threshold in stage 3 will be evaluated in stage 4 for price and preference points.

7.5.2. The 80/20 preference point system shall be applicable to this bid, where 80 points represent maximum obtainable points for the lowest acceptable price, and 20 points represents the specific goals. Points will be awarded to a bidder for attaining the specific goals outlined in accordance with the table below:

#	Specific Goals of Preference	Proof/ Evidence required	Points Allocation
1	51% or more ownership by black people	CSD report/B-BBEE Certificate or Sworn Affidavit, CIPC Report	8
2	51% or more ownership by black women	CSD report/B-BBEE Certificate or Sworn Affidavit, CIPC Report	5
3	30% or more ownership by youth	CSD report/B-BBEE Certificate or Sworn Affidavit, CIPC Report	3
4	EME/QSE	CSD report/B-BBEE Certificate or Sworn Affidavit, CIPC Report	4
TOTAL POINTS			**20**

8. SPECIAL CONDITIONS

8.1. The following are the special conditions applicable to this request for proposals.

The OPFA will not accept the bid, if the OPFA is satisfied that any person (including an employee, partner, director or shareholder of the tenderer or a person acting on behalf of or with the knowledge of the tenderer), firm or company:

8.1.1. Is executing a contract with the OPFA unsatisfactorily.

8.1.2. Is restricted from doing business with the state or employed by the state

8.1.3. Has in any manner been involved in a corrupt act in relation or other gift or remuneration to any officer or employee of the OPFA in connection with obtaining or executing a contract.

8.1.4. Has acted in bad faith, in a fraudulent manner or committed an offence in obtaining or executing a contract.

8.1.5. Has in any manner influenced or attempted to influence the awarding of OPFA's bid.

8.1.6. Has, when advised that their tender has been accepted, given notice of his inability to execute or sign the contract.

8.1.7. Has engaged in any anti-competitive behaviour, including having entered into any agreement or arrangement, whether legally binding or not, with any other person, firm or company to refrain from tendering for this contract, or relating to the tender price to be submitted by either party.

8.1.8. Has disclosed to any other person, any information relating to this bid, except where disclosure, in confidence, was necessary to obtain quotations required for the preparation of the tender or required by law;

8.1.9. The OPFA may, in addition to any other legal recourse which it may have, cancel the contract between the OPFA and such a person and/or resolve that no tender from such a person will be considered for a specified period.

8.1.10. The award of this tender may be subjected to price negotiation with the highest point scorer in terms of the preferential procurement regulation if the price offered is considered not to be market related.

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8.2. The OPFA may amend any bid conditions, bid validity period, tender specifications, or extend the bid's closing date, all before the bid closing date. All bidders, to whom the tender documents have been issued and where the OPFA have record of such bidders, may be advised in writing of such amendments in good time and any such changes will also be posted on the OPFA's website under the relevant tender information. All prospective bidders must, therefore, ensure that they visit the website regularly and before they submit their bid response to ensure that they are kept updated on any amendments in this regard.

8.3. The OPFA reserves the right not to accept the lowest priced bid or any bid in part or in whole. The OPFA reserves the right to award this bid as a whole or in part.

8.4. The OPFA reserves the right to conduct site visits at bidder's corporate offices and/or at client sites if so required.

8.5. The OPFA reserves the right to request all relevant information, agreements and other documents to verify information supplied in the bid response. The bidder hereby gives consent to the OPFA to conduct background checks on the bidding entity and any of its directors/trustees/shareholders/members.

9. UNDERTAKING BY THE BIDDER

9.1. By submitting a bid in response to this tender, the bidder will be taken tohave offered to render all or any of the services described in the bid response submitted by it to the OPFA on the terms and conditions and in accordance with the specifications stipulated in this tender document.

9.2. The bidder agrees that the offer contained in its bid shall remain binding and receptive for acceptance by the OPFA during the bid validity period indicated in the tender and calculated from the bid closing date and its acceptanceshall be subject to the terms and conditions contained in this tender document read with the bid.

9.3. The bidder furthermore confirms that he has satisfied himself as to thecorrectness and validity of his bid response; that the price(s) and rate(s) quoted cover all the work/item(s) specified in the bid response documents; and that the price(s) and rate(s) cover all his obligations under a resulting.

INITIAL HERE	

contract for the services contemplated in this tender; and that he accepts that any mistakes regarding price(s) and calculations will be at their own risk.

9.4. The successful bidder accepts full responsibility for the proper execution and fulfilment of all obligations and conditions devolving under the supply agreement and Service Level Agreement (SLA) to be concluded with OPFA, as the principal(s) liable for the due fulfilment of such contract.

9.5. The bidder accepts that all costs incurred in the preparation, presentation and demonstration of the solution offered shall be for the account of the bidder. All supporting documentation and manuals submitted with the bid will become OPFA property unless otherwise stated by the bidder/s at the time of submission.

10. ENQUIRIES REGARDING TENDER

10.1. Any questions regarding this tender shall be submitted in writing to the official mentioned in the Tender Notice, enquiries must be sent to tenders@pfa.org.za

11. COMPULSORY TENDER BRIEFING

11.1. There will be a compulsory tender briefing on this project.

Details of the briefing is as follows:

- **Date**: 20 January 2025
- **Time**: 10:00 – 11:30
- **Link: Join the meeting now**

Meeting ID: 361 406 974 988

Passcode: cb6U78Wt

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12. TENDER SUBMISSIONS

12.1. Completed documents with supporting annexures shall be packaged, sealed, clearly marked, and submitted on or before the closing date and time.

Closing **date:** 31 January 2025

Time: 11H00

Tender No: OPFA/ICT/042024

12.2. **Bids must be hand delivered to the OPFA's address as follows.**

41 Matroosberg Road
Riverwalk Office Park
Block A, Fourth Floor
Ashlea Gardens,
Pretoria

12.3. Late submissions and bids submitted by means of e-mail, telegram, telex facsimile, electronic or similar means shall not be considered.

13. TENDER SUBMISSION FORMAT

13.1. The OPFA requires one original copy of the bid completed bid document and supporting documents **(hard copy)** and one soft copy in a memory stick or compact disc. All submissions must be made as per *paragraph 10* above.

14. REGISTRATION WITH CENTRAL SUPPLIER DATABASE

14.1. The OPFA will not award any bid to a supplier who is not registered as a prospective supplier on the Central Supplier Database (CSD) as required in terms of National Treasury National Treasury SCM Instruction Note 4A of 2016/2017.

15. BID VALIDITY PERIOD

15.1. The bid validity period will be one hundred and twenty (120) days from the closing of the tender.

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16. ADDITIONAL INFORMATION REQUIRED

16.1. The following additional information is required: A sworn declaration and/or proof that a bidder:

- Is not participating and contributing to any retirement fund for its employees
- Is participating and contributing to a pension or provident fund and contributions are not in arrears. As proof, a confirmation of their contribution status from their retirement fund administrator must be submitted together with the declaration.

17. PROTECTION OF PERSONAL INFORMATION

17.1. Personal Information" means personal information as defined in the Protection of Personal Information Act, 2013 (Act No. 4 of 2013), as amended from time to time.

17.2. All information collected and submitted by the bidders will be used by the OPFA for the evaluation and adjudication of this bid to determine the bidders' suitability and compliance to deliver the goods/services required. By submitting this bid the bidder gives consent for the OPFA to process the personal information provided by the bidder accordingly.

17.3. Personal Information" (PI) shall mean the race, gender, sex, pregnancy, marital status, national or ethnic origin, colour, sexual orientation, age, physical or mental health, disability, religion, conscience, belief, culture, language and birth of a person; information relating to the education or the medical, financial, criminal or employment history of the person; any identifying number, symbol, email address, physical address, telephone number, location information, online identifier or other particular assignment to the person; the biometric information of the person; the personal opinions, views or preferences of the person; correspondence sent by the person that is implicitly or explicitly of a private or confidential nature or further correspondence that would reveal the contents of the original correspondence; the views or opinions of another individual about the person whether the information is recorded electronically or otherwise.

17.4. The parties acknowledge that for the purposes of this bid and agreement the parties may come into contact with or have access to PI and other information that may be classified, or deemed as private or confidential and for which the other party is responsible. Such PI may also be deemed or considered as private and confidential as it relates to any third party who may be directly or indirectly associated with this agreement. Further, it is acknowledged and agreed by the parties that they have the necessary consent to share or disclose the PI and that the information may have value.

17.5. The parties agree that they will at all times comply with POPIA's Regulations and Codes of Conduct and that it shall only collect, use and process PI it comes into contact with pursuant to this agreement in a lawful manner, and only to the extend required to execute the services, or to provide the goods and to perform their respective obligations in terms of this agreement.

17.6. The parties agree that it shall put in place, and at all times maintain, appropriate physical, technological, and contractual security measures to ensure the protection and confidentiality of PI that it, or its employees, its contractors or other authorised individuals comes into contact with pursuant to this agreement.

17.7. Notify each other immediately where it has reasonable grounds to believe that the Personal Information in respect of this agreement, which has been provided to it including any Personal Information which it has processed, has been lost, destroyed, or accessed or acquired by any unauthorized person.

17.8. Unless so required by law, the parties agree that it shall not disclose any PI as defined in POPIA to any third party without the prior written consent of the other party, notwithstanding anything to the contrary contained herein, shall any party transfer any PI out of the Republic of South Africa.

17.9. The bidder and OPFA will implement all the necessary processes and programs to ensure that all the data is secure at all times and not accessible by any unauthorised parties.

YOU ARE HEREBY INVITED TO BID FOR REQUIREMENTS OF THE OFFICE OF PENSION FUNDS ADJUDICATOR			
BID NUMBER:	**OPFA/ICT/042024**	CLOSING DATE: **31 JANUARY 2025**	CLOSING TIME: **11:00**
DESCRIPTION	**PROVISION OF OF CLOUD-BASED BACKUP AND DISASTER RECOVERY (DR)**		
BID RESPONSE DOCUMENTS MUST BE SUBMITTED ELECTONICALLY			
BID MUST BE SUBMITTED TO: 41 MATROOSBERG ROAD, RIVERWALK OFFICE PARK, ASHLEA GARDENS, 0081, 4TH FLOOR BLOCK A			

BIDDING PROCEDURE ENQUIRIES MAY BE DIRECTED TO		**TECHNICAL ENQUIRIES MAY BE DIRECTED TO:**	
CONTACT PERSON	Magadi Tshitannye	CONTACT PERSON	Magadi Tshitannye
TELEPHONE NUMBER	012 748 4000	TELEPHONE NUMBER	012 748 4000
FACSIMILE NUMBER		FACSIMILE NUMBER	
E-MAIL ADDRESS	tenders@pfa.org.za	E-MAIL ADDRESS	tenders@pfa.org.za

SUPPLIER INFORMATION					
NAME OF BIDDER					
POSTAL ADDRESS					
STREET ADDRESS					
TELEPHONE NUMBER	CODE			NUMBER	
CELLPHONE NUMBER					
FACSIMILE NUMBER	CODE			NUMBER	
E-MAIL ADDRESS					
VAT REGISTRATION NUMBER					
SUPPLIER COMPLIANCE STATUS	TAX COMPLIANCE SYSTEM PIN:		**OR**	CENTRAL SUPPLIER DATABASE No:	MAAA
B-BBEE STATUS LEVEL VERIFICATION CERTIFICATE	TICK APPLICABLE BOX] Yes No		B-BBEE STATUS LEVEL SWORN AFFIDAVIT		[TICK APPLICABLE BOX] Yes No
[A B-BBEE STATUS LEVEL VERIFICATION CERTIFICATE/ SWORN AFFIDAVIT (FOR EMES & QSEs) MUST BE SUBMITTED IN ORDER TO QUALIFY FOR PREFERENCE POINTS FOR B-BBEE]					
ARE YOU THE ACCREDITED REPRESENTATIVE IN SOUTH AFRICA FOR THE GOODS /SERVICES /WORKS OFFERED?	Yes No [IF YES ENCLOSE PROOF]		ARE YOU A FOREIGN BASED SUPPLIER FOR **THE GOODS/SERVICES /WORKS OFFERED?**		Yes No [IF YES, ANSWER THE QUESTIONNAIRE BELOW]

QUESTIONNAIRE TO BIDDING FOREIGN SUPPLIERS	
IS THE ENTITY A RESIDENT OF THE REPUBLIC OF SOUTH AFRICA (RSA)?	☐ YES ☐ NO
DOES THE ENTITY HAVE A BRANCH IN THE RSA?	☐ YES ☐ NO
DOES THE ENTITY HAVE A PERMANENT ESTABLISHMENT IN THE RSA?	☐ YES ☐ NO
DOES THE ENTITY HAVE ANY SOURCE OF INCOME IN THE RSA?	☐ YES ☐ NO
IS THE ENTITY LIABLE IN THE RSA FOR ANY FORM OF TAXATION?	☐ YES ☐ NO
IF THE ANSWER IS "NO" TO ALL OF THE ABOVE, THEN IT IS NOT A REQUIREMENT TO REGISTER FOR A TAX COMPLIANCE STATUS SYSTEM PIN CODE FROM THE SOUTH AFRICAN REVENUE SERVICE (SARS) AND IF NOT REGISTER AS PER 2.3 BELOW.	

PART B: TERMS AND CONDITIONS FOR BIDDING

1. BID SUBMISSION:
1.1. BIDS MUST BE DELIVERED BY THE STIPULATED TIME TO THE CORRECT ADDRESS. LATE BIDS WILL NOT BE ACCEPTED FOR CONSIDERATION.
1.2. ALL BIDS MUST BE SUBMITTED ON THE OFFICIAL FORMS PROVIDED–(NOT TO BE RE-TYPED) OR IN THE MANNER PRESCRIBED IN THE BID DOCUMENT.
1.3. THIS BID IS SUBJECT TO THE PREFERENTIAL PROCUREMENT POLICY FRAMEWORK ACT, 2000 AND THE PREFERENTIAL PROCUREMENT REGULATIONS**, 2022**, THE GENERAL CONDITIONS OF CONTRACT (GCC) AND, IF APPLICABLE, ANY OTHER SPECIAL CONDITIONS OF CONTRACT.
1.4. THE SUCCESSFUL BIDDER WILL BE REQUIRED TO FILL IN AND SIGN A WRITTEN CONTRACT FORM (SBD7).

2. TAX COMPLIANCE REQUIREMENTS
2.1 BIDDERS MUST ENSURE COMPLIANCE WITH THEIR TAX OBLIGATIONS.
2.2 BIDDERS ARE REQUIRED TO SUBMIT THEIR UNIQUE PERSONAL IDENTIFICATION NUMBER (PIN) ISSUED BY SARS TO ENABLE THE ORGAN OF STATE TO VERIFY THE TAXPAYER'S PROFILE AND TAX STATUS.
2.3 APPLICATION FOR TAX COMPLIANCE STATUS (TCS) PIN MAY BE MADE VIA E-FILING THROUGH THE SARS WEBSITE WWW.SARS.GOV.ZA.
2.4 BIDDERS MAY ALSO SUBMIT A PRINTED TCS CERTIFICATE TOGETHER WITH THE BID.
2.5 IN BIDS WHERE CONSORTIA / JOINT VENTURES / SUB-CONTRACTORS ARE INVOLVED, EACH PARTY MUST SUBMIT A SEPARATE TCS CERTIFICATE / PIN / CSD NUMBER.
2.6 WHERE NO TCS PIN IS AVAILABLE BUT THE BIDDER IS REGISTERED ON THE CENTRAL SUPPLIER DATABASE (CSD), A CSD NUMBER MUST BE PROVIDED.
2.7 NO BIDS WILL BE CONSIDERED FROM PERSONS IN THE SERVICE OF THE STATE, COMPANIES WITH DIRECTORS WHO ARE PERSONS IN THE SERVICE OF THE STATE, OR CLOSE CORPORATIONS WITH MEMBERS PERSONS IN THE SERVICE OF THE STATE."

NB: FAILURE TO PROVIDE / OR COMPLY WITH ANY OF THE ABOVE PARTICULARS MAY RENDER THE BID INVALID.

SIGNATURE OF BIDDER: ……………………………………………

CAPACITY UNDER WHICH THIS BID IS SIGNED: ……………………………………………
(Proof of authority must be submitted e.g. company resolution)

DATE:…………………………………………………..

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SBD 4: BIDDER'S DISCLOSURE

1. PURPOSE OF THE FORM

Any person (natural or juristic) may make an offer or offers in terms of this invitation to bid. In line with the principles of transparency, accountability, impartiality, and ethics as enshrined in the Constitution of the Republic of South Africa and further expressed in various pieces of legislation, it is required for the bidder to make this declaration in respect of the details required hereunder.

Where a person/s are listed in the Register for Tender Defaulters and / or the List of Restricted Suppliers, that person will automatically be disqualified from the bid process.

Bidder's declaration

2.1. Is the bidder, or any of its directors / trustees / shareholders / members / partners or any person having a controlling interest1 in the enterprise, employed by the state? **YES/NO**

2.1.1. If so, furnish particulars of the names, individual identity numbers, and, if applicable, state employee numbers of sole proprietor/ directors / trustees / shareholders / members/ partners or any person having a controlling interest in the enterprise, in table below.

Full Name	Identity Number	Name of State institution

[1] the power, by one person or a group of persons holding the majority of the equity of an enterprise, alternatively, the person/s having the deciding vote or power to influence or to direct the course and decisions of the enterprise.

INITIAL HERE	

2.2 Do you, or any person connected with the bidder, have a relationship with any person who is employed by the procuring institution? **YES/NO**

2.2.1 If so, furnish particulars:

………………………………………………………………………………………

………………………………………………………………………………………

2.3 Does the bidder or any of its directors / trustees / shareholders / members / partners or any person having a controlling interest in the enterprise have any interest in any other related enterprise whether or not they are bidding for this contract? **YES/NO**

2.3.1 If so, furnish particulars:

…………………………………………………………………………….

…………………………………………………………………………….

3 DECLARATION

I, the undersigned, (name)……………………………………………………………in submitting the accompanying bid, do hereby make the following statements that I certify to be true and complete in every respect:

3.1 I have read and I understand the contents of this disclosure;

3.2 I understand that the accompanying bid will be disqualified if this disclosure is found not to be true and complete in every respect;

3.3 The bidder has arrived at the accompanying bid independently from, and without consultation, communication, agreement or arrangement with any competitor. However, communication between partners in a joint venture or consortium2 will not be construed as collusive bidding.

3.4 In addition, there have been no consultations, communications, agreements or arrangements with any competitor regarding the quality, quantity, specifications, prices, including methods, factors or formulas used to calculate prices, market allocation, the intention or decision to submit or not to submit the bid, bidding with the intention not to win the bid and conditions or delivery particulars of the products or services to which this bid invitation relates.

[2] Joint venture or Consortium means an association of persons for the purpose of combining their expertise, property, capital, efforts, skill and knowledge in an activity for the execution of a contract.

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3.4 The terms of the accompanying bid have not been, and will not be, disclosed by the bidder, directly or indirectly, to any competitor, prior to the date and time of the official bid opening or of the awarding of the contract.

3.5 There have been no consultations, communications, agreements or arrangements made by the bidder with any official of the procuring institution in relation to this procurement process prior to and during the bidding process except to provide clarification on the bid submitted where so required by the institution; and the bidder was not involved in the drafting of the specifications or terms of reference for this bid.

3.6. I am aware that, in addition and without prejudice to any other remedy provided to combat any restrictive practices related to bids and contracts, bids that are suspicious will be reported to the Competition Commission for investigation and possible imposition of administrative penalties in terms of section 59 of the Competition Act No 89 of 1998 and or may be reported to the National Prosecuting Authority (NPA) for criminal investigation and or may be restricted from conducting business with the public sector for a period not exceeding ten (10) years in terms of the Prevention and Combating of Corrupt Activities Act No 12 of 2004 or any other applicable legislation.

I CERTIFY THAT THE INFORMATION FURNISHED IN PARAGRAPHS 1, 2 and 3 ABOVE IS CORRECT. I ACCEPT THAT THE STATE MAY REJECT THE BID OR ACT AGAINST ME IN TERMS OF PARAGRAPH 6 OF PFMA SCM INSTRUCTION 03 OF 2021/22 ON PREVENTING AND COMBATING ABUSE IN THE SUPPLY CHAIN MANAGEMENT SYSTEM SHOULD
THIS DECLARATION PROVE TO BE FALSE.

………………… ………………………………
Signature **Date**

…………………… …………………………
Position **Name of bidder**

INITIAL HERE	

SBD 6.1PREFERENCE POINTS CLAIM FORM IN TERMS OF THE PREFERENTIAL PROCUREMENT REGULATIONS 2022

This preference form must form part of all tenders invited. It contains general information and serves as a claim form for preference points for specific goals.

NB: BEFORE COMPLETING THIS FORM, TENDERERS MUST STUDY THE GENERAL CONDITIONS, DEFINITIONS AND DIRECTIVES APPLICABLE IN RESPECT OF THE TENDER AND PREFERENTIAL PROCUREMENT REGULATIONS, 2022

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1. GENERAL CONDITIONS

1.1 The following preference point systems are applicable to invitations to tender:

- the 80/20 system for requirements with a Rand value of up to R50 000 000 (all applicable taxes included); and
- the 90/10 system for requirements with a Rand value above R50 000 000 (all applicable taxes included).

1.2 **To be completed by the organ of state**

a) The applicable preference point system for this tender is the 80/20 preference point system.

1.3 Points for this tender (even in the case of a tender for income-generating contracts) shall be awarded for:

(a) Price; and

(b) Specific Goals.

1.4 **To be completed by the organ of state:**

The maximum points for this tender are allocated as follows:

	POINTS
PRICE	80
SPECIFIC GOALS	20
Total points for Price and SPECIFIC GOALS	**100**

1.5 Failure on the part of a tenderer to submit proof or documentation required in terms of this tender to claim points for specific goals with the tender, will be interpreted to mean that preference points for specific goals are not claimed.

1.6 The organ of state reserves the right to require of a tenderer, either before a tender is adjudicated or at any time subsequently, to substantiate any claim in regard to preferences, in any manner required by the organ of state.

INITIAL HERE	

2. DEFINITIONS

(a) **"**tender" means a written offer in the form determined by an organ of state in response to an invitation to provide goods or services through price quotations, competitive tendering process or any other method envisaged in legislation;

(b) **"price"** means an amount of money tendered for goods or services, and includes all applicable taxes less all unconditional discounts;

(c) **"rand value"** means the total estimated value of a contract in Rand, calculated at the time of bid invitation, and includes all applicable taxes;

(d) **"tender for income-generating contracts"** means a written offer in the form determined by an organ of state in response to an invitation for the origination of income-generating contracts through any method envisaged in legislation that will result in a legal agreement between the organ of state and a third party that produces revenue for the organ of state, and includes, but is not limited to, leasing and disposal of assets and concession contracts, excluding direct sales and disposal of assets through public auctions; and

(e) **"the Act"** means the Preferential Procurement Policy Framework Act, 2000 (Act No. 5 of 2000).

3. FORMULAE FOR PROCUREMENT OF GOODS AND SERVICES

3.1. POINTS AWARDED FOR PRICE

3.1.1 THE 80/20 OR 90/10 PREFERENCE POINT SYSTEMS

A maximum of 80 or 90 points is allocated for price on the following basis:

80/20 **or** **90/10**

$$Ps = 80\left(1 - \frac{Pt - P\,min}{P\,min}\right) \quad \text{or} \quad Ps = 90\left(1 - \frac{Pt - P\,min}{P\,min}\right)$$

Where

Ps = Points scored for price of tender under consideration

Pt = Price of tender under consideration

Pmin = Price of lowest acceptable tender

3.2. **FORMULAE FOR DISPOSAL OR LEASING OF STATE ASSETS AND INCOME GENERATING PROCUREMENT**

3.2.1. **POINTS AWARDED FOR PRICE**

A maximum of 80 or 90 points is allocated for price on the following basis:

80/20	**or**	**90/10**

$$\boldsymbol{Ps = 80\left(1 + \frac{Pt - P\,max}{P\,max}\right)}$$ or $$\boldsymbol{Ps = 90\left(1 + \frac{Pt - P\,max}{Pmax}\right)}$$

Where

Ps	=	Points scored for price of tender under consideration
Pt	=	Price of tender under consideration
Pmax	=	Price of highest acceptable tender

4. POINTS AWARDED FOR SPECIFIC GOALS

4.1. In terms of Regulation 4(2); 5(2); 6(2) and 7(2) of the Preferential Procurement Regulations, preference points must be awarded for specific goals stated in the tender. For the purposes of this tender the tenderer will be allocated points based on the goals stated in table 1 below as may be supported by proof/ documentation stated in the conditions of this tender:

4.2. In cases where organs of state intend to use Regulation 3(2) of the Regulations, which states that, if it is unclear whether the 80/20 or 90/10 preference point system applies, an organ of state must, in the tender documents, stipulate in the case of—

(a) an invitation for tender for income-generating contracts, that either the 80/20 or 90/10 preference point system will apply and that the highest acceptable tender will be used to determine the applicable preference point system; or

(b) any other invitation for tender, that either the 80/20 or 90/10 preference point system will apply and that the lowest acceptable tender will be used to determine the applicable preference point system,

then the organ of state must indicate the points allocated for specific goals for both the 90/10 and 80/20 preference point system.

Table 1: Specific goals for the tender and points claimed are indicated per the table below.

(Note to organs of state: Where either the 90/10 or 80/20 preference point system is applicable, corresponding points must also be indicated as such.

Note to tenderers: The tenderer must indicate how they claim points for each preference point system.)

The specific goals allocated points in terms of this tender	**Number of points Allocated (80/20 system)** **(To be completed by the organ of state)**	**Number of points claimed (80/20 system)** **(To be completed by the tenderer)**
51% or more ownership by black people	8	
51% or more ownership by black women	5	
30% or more ownership by youth	3	
EME/QSE	4	
Total points allocated	**20**	
Number of points claimed by the bidder		

DECLARATION WITH REGARD TO COMPANY/FIRM

4.3. Name of company/firm………………………………………………………………….

4.4. Company registration number: …………………………………………………………

4.5. TYPE OF COMPANY/ FIRM

- ☐ Partnership/Joint Venture / Consortium
- ☐ One-person business/sole propriety
- ☐ Close corporation
- ☐ Public Company
- ☐ Personal Liability Company
- ☐ (Pty) Limited
- ☐ Non-Profit Company
- ☐ State Owned Company

[TICK APPLICABLE BOX]

4.6. I, the undersigned, who is duly authorised to do so on behalf of the company/firm, certify that the points claimed, based on the specific goals as advised in the tender, qualifies the company/ firm for the preference(s) shown and I acknowledge that:

i) The information furnished is true and correct;

ii) The preference points claimed are in accordance with the General Conditions as indicated in paragraph 1 of this form;

iii) In the event of a contract being awarded as a result of points claimed as shown in paragraphs 1.4 and 4.2, the contractor may be required to furnish documentary proof to the satisfaction of the organ of state that the claims are correct;

iv) If the specific goals have been claimed or obtained on a fraudulent basis or any of the conditions of contract have not been fulfilled, the organ of state may, in addition to any other remedy it may have –

(a) disqualify the person from the tendering process;

(b) recover costs, losses or damages it has incurred or suffered as a result of that person's conduct;

(c) cancel the contract and claim any damages which it has suffered as a result of having to make less favourable arrangements due to such cancellation;

(d) recommend that the tenderer or contractor, its shareholders and directors, or only the shareholders and directors who acted on a fraudulent basis, be restricted from obtaining business from any organ of state for a period not exceeding 10 years, after the *audi alteram partem* (hear the other side) rule has been applied; and

(e) forward the matter for criminal prosecution, if deemed necessary.

……………………………………….
SIGNATURE(S) OF TENDERER(S)

SURNAME AND NAME: ……………………………………………………….
DATE: ……………………………………………………….

ADDRESS: ……………………………………………………….

……………………………………………………….

……………………………………………………….
……………………………………………………….

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